TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, October 8, 2014

The meeting was called to order by Chair Godau at 7:05 pm. Board delayed the start for five minutes to allow time for the appellants or their representative to appear. Appellate, Dave Schankin, arrived at 7:10 pm after the meeting had commenced.

Roll Call:
Present – Chair Godau, Vice-Chair Swanson, Bridges, Engelhardt, Alternate Hamilton, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod
Absent – Szczepanski, excused
Public – Dave Schankin, Steve Bryant

Approval of Minutes:
Regular Meeting minutes of April 9, 2014 – It was moved by Bridges and seconded by Swanson to accept the minutes as read. Motion passed Yes (4) No (0) Hamilton abstained.

Conflict of Interest Statement (Declare and Cite) No conflict of interest was stated.

General Comments by Chair Chair Godau advised that Lincoln Township is a zoned township, of only six in Clare County. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate.

He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. Once an appeal is made to the ZBA and denied or approved, any aggrieved person can appeal to the Circuit Court.

Purpose: Chair Godau read the following information: To consider the application of David and Karen Schankin for a Request for Variance for property #18-010-720-704-00 located at 4911 Lake Road, Farwell, Michigan. Property owners request approval to construct an accessory building (26' x 32' garage) to be located in their front yard. This would violate the Lincoln Township Zoning Ordinance, Section 1502, Paragraph 2, which clearly states, "detached accessory buildings shall not be erected in any required front yard with the exception of item eight (8) for waterfront lots listed below." The notice of this variance was published in the *Clare County Cleaver* September 25, 2014, in accordance with the township zoning ordinances. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the Township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Mr. Schankin explained that the property is built into the side of a hill with a septic/drain field on the side which posed a large issue. He worked with the builder and the environmental committee to see what could be done. He first tried to get a variance from White Birch to push back by digging into the hill, but this was denied by them. The other options were not aesthetically pleasing for either the Schankins or their neighbors and not practical for other reasons. He felt he had only one option and that was to push the garage up towards

the front of the property rather than behind it. Another problem is that the garage in the back would be up a hill and practically impossible to use in the winter.

ZBA Members Comments & Questions:

Hamilton stated that accessory buildings only need 5 feet from side lot line.

Engelhardt inquired about the culvert or drain near the swampy area on his property. Mr. Schankin said that it is non-functional. Engelhardt stated that the land on the side is not considered a wetland.

Bridges indicated that with the size of the drain field with the 5 foot setback, that he should have plenty of room to move the garage back behind the house. Bridges said that if it was turned to fit, it would be able to be built. Response from Mr. Schankin, this wouldn't allow for three cars. He would have to fill into the side of the hill/slope. Bridges: Economics is not a part of the board's concern; it is just looking at what can be done to solve the issue.

Bridges pointed out that one of the drawings was done without dimensions, causing more questions to be asked.

Swanson: I don't understand why you couldn't put it right over the septic tank. Answer: we were told we couldn't do that because you can't drive over a septic field. Clarification: you can drive over the tank, but not the field.

Godau: Is there something keeping you from moving the tank and the field over to the other side? It is not that expensive to move both. On the environmental side, Mr. Schankin said that he has already taken down trees and moving the septic system would make him have to take down more trees. Godau pointed out that White Birch does not supersede the township's authority in zoning.

Mr. Schankin was under the assumption that he had done everything correctly after a meeting last year which Carey had attended and had not anticipated this problem.

Bridges explained how to measure the property using a tangential method; this would establish a line which would indicate where he should put the garage.

Hamilton: are we basing this on the sentence about detached accessory….required front yard? Board: what are we defining as a required front yard? Hamilton: 50 feet is required front yard; there is a diagram on page 15 of the zoning ordinance book. See on that diagram in the middle, there is a dotted line that indicates a

buildable area. Do you see that there is some room beyond the lines and the front of the house? There is a difference between a total front yard and required front yard. Bridges: What the word *required* means is that you can't go beyond that line once you build your house. Hamilton: In section1502, there is a difference between a required backyard and a total backyard. He can put it in the front yard, not in the required front yard, so that he could put it out farther than the 50 foot area out from the house. In R-2 the required front yard is 50 feet.

Engelhardt: he has 90 feet in front of his house, so his required front yard is 50 feet so that he could put his garage out in front of that 50 feet? Godau: we have a difference among ourselves about required minimum setback. Once you build your house you have now developed a front yard line; now you measure your required yard area. Godau: this is determined by the front line of the house to the road you cannot build or put an accessory building within the 50 feet of the yard.

Godau: if we have a problem with interpretation, we will delay this hearing or we can come to an agreement. Call for opinion of continuing this hearing: Hamilton: no; Swanson: yes; Engelhardt: no; Bridges: yes; Godau: yes. We will proceed with the meeting under the interpretation above.

Public Comment: Godau: we sent out notification to all property owners within 300 feet, no responses were received.

Carey: Section 15 in the zoning book has a diagram which shows the buildable envelope of a property. The front yard is on the front of the house.

Bryant: White Birch has its own setbacks; everyone when they establish a setback, you can build beyond your setback as long as you are within your buildable envelope. He cited several examples of buildings which prove that the garage can be built in the front of a house.

Godau reiterated that White Birch does not supersede the Lincoln zoning ordinances.

Bryant: There was just one approved on Badger Court which is only different from this one because it is on an additional lot. Bridges: It is irrelevant. Carey: It was approved because it was on a different lot. Schankin: I did try to buy the next lot over, but could not.

ZBA Members Comments & Questions: No further comments or questions.

Public Hearing Closed by Chair at 8:04 pm

Closed Hearing is called to Order by Chair at 8:04 pm

Discussion and Further Questions by ZBA Members:
Carey: we learned in class that if you build your house in the back of your property, you will have caused yourself a problem as you cannot build anything in your front yard.

Closed Session is Closed by Chair at 8:11

Open Meeting Reconvened by Chair at 8:11
Bryant: I am a licensed real estate broker as well as a licensed builder. I have seen a lot of court cases like what you are mentioning but they are overturned on a regular basis. I agree that you can't build within the 50 foot yard, but you can build out beyond that.

Bridges: I have been involved in planning and zoning for more than 20 years and have never seen that interpretation overturned in court.

Schankin: I appreciate everyone taking time for this and I have learned a lot. It has been an interesting discussion. I didn't expect the discussion that took place; my assumption was that I was requesting a variance. I am not happy with the selection that is in front of the board; I was expecting that you would determine that it is the best solution.

Engelhardt: The discussion about what constitutes your front yard is very pertinent because it will determine how I decide this issue.

Finding of Fact: Chair Godau clarified that the board is making a decision based on the interpretation that the required front yard is defined as the line from the front of the house to the front line of the property.

The board then worked individually through the five standards.

Chair Godau reminded the board that any *no* in the five standards constitutes a decline for the hearing on that standard.

Final Decision:

Chair Godau requests a motion from the Board to decline the variance. Bridges made a motion to deny the request for variance. Godau seconded. Roll call vote: Bridges (yea), Godau (yea), Swanson (nay), Engelhardt (yea), Hamilton (nay) The motion passes to decline the request by 3 yeas to 2 nays.

Roll Call Vote/Reasons:

See Final Decision Form

Moved by Bridges and seconded by Engelhardt to adjourn the meeting at 8:45 pm. Motion passed with all in favor.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary

Attachment #1

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. Only the rarest situations should qualify for relief from the zoning ordinance's requirements because the zoning regulations are ultimately intended to protect the general health, safety and welfare of the township. Each time a variance from those regulations is granted without meeting the prescribed tests, it erodes the integrity of the township's zoning regulations and their ability to consistently protect all township residents.

Decisions must be based solely on the applicable provisions of the zoning ordinance and the ability of the applicant's property to qualify for some relief from those provisions based on the ordinance's standards and the location's physical characteristics.

Practical Difficulty: Lincoln Township has a set of criteria a person must meet to be allowed a Variance. An applicant must meet each of the 5, not 4 or 3, all 5 practical difficulties. Michigan appellate court has held that the Zoning Board of Appeals cannot grant a Variance without substantial evidence of all 5. This is actually an open and shut case as Mr. Schankin only answered one question and according to the application he is supposed to answer all five.

Number One, there are practical difficulties of carrying out the strict letter of the zoning so that in granting the proposed variance the spirit of the zoning ordinance is observed, public safety is secured and substantial justice is done.

The Schankin’s have an option, they can move their Drain field and move the garage back to conform to our ordinance thus there is no practical difficulty.

If Mr. Schankin were to have answered all the questions, my response would have been:

Number Two, the condition or situation of the property is unique and not shared by neighboring properties in the same zone.

The Schankin's property is pretty much the same as many other properties in White Birch, no practical difficulty.

Number Three, a variance would not be significantly detrimental to adjacent property and the surrounding neighborhood.
Not applicable

Number Four, the practical difficulty was not self created.
In this situation it was self created, this is from our Zoning Ordinance of 1977: Detached accessory buildings shall not be erected in any required front yard. Mr. Schankin bought his property in 2000 and built his home in 2001. When he built his house Zoning had been in effect for 24 years.

Number Five, Minimum Variance Necessary.

This does not apply as there is ability to build the garage without a variance.